

24NNCV00412 24NNCV00412

County: los-angeles

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Department: D

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Case Number: 24NNCV00412 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 15

Date: September 18, 2026

Case No: 24NNCV00412 Trial Date: March 15, 2027

Case Name: Chandler v. Finch, et al.

MOTIONS TO COMPEL DISCOVERY

Moving Party: Defendant, Norma Lynn Finch

Responding Party: Plaintiff, Anthony Chandler [Unopposed]

RELIEF REQUESTED:

Compel Plaintiff's responses to special interrogatories and requests for production and request for sanctions.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle

2) General Negligence

SUMMARY OF FACTS:

This action arises out of an alleged motor vehicle accident. Anthony Chandler ("Plaintiff") alleges that on June 30, 2022, at the intersection of Highland Oaks Drive and Foothill Boulevard in Arcadia, CA, Norma Lynn Finch ("Defendant") negligently, wantonly, unlawfully, and carelessly failed to stop for the red light ahead, rear-ending Plaintiff's vehicle, causing property damage and personal injury to Plaintiff.

ANALYSIS:

A motion to compel an initial response can be made on the ground that a party did not serve a timely response to interrogatories or a demand to produce. (CCP §§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [demand to produce]; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) The discovering party can also make a motion to deem as admitted any unanswered requests for admission or any requests answered in a late or unverified response. (CCP § 2033.280, subd. (b); CCP, § 2033.240, subd. (a) [RFA responses must be signed by responding party under oath]; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovering party must make the motion. (CCP § 2033.280, subd. (b).)

To establish this ground, a movant must show:

(1) Proper service (CCP §§ 2030.080, subd. (a) [interrogatories], 2031.040 [demand to produce]; § 2033.070 [requests for admission])

(2) Expiration of the deadline for the initial response 30 days after service or on date agreed to by parties (CCP §§ 2030.260, subds. (a), (b) [interrogatories], 2031.260, subds. (a), (b) [demand to produce] 2033.250, subds. (a), (b) [requests for admission]); and

(3) No timely response. (CCP §§ 2030.290 [interrogatories], 2031.300 [demand to produce] § 2033.280, subd. (b) [requests for admission])

A court must deny a motion to compel initial discovery where the discovery sought is outside the scope of discovery. (*CBS, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19; CCP § 2017.010 [scope of discovery].)

The SROGs and RFPs were served via electronic service on May 28, 2026. (Ortega Decl., ¶ 2, Ex. 1.) The parties agreed on a response deadline of July 20, 2026. (Ortega Decl., ¶ 5.) As of the date of the hearing on these motions, there is no evidence before the Court that Plaintiff has responded to the discovery requests. Thus, the motions are GRANTED.

Request for Sanctions

The Court must impose monetary sanctions against anyone—party, nonparty, or attorney—who unsuccessfully makes or opposes the motion, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (CCP §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [demand to produce]; *Sinaiko*, supra, 148 Cal.App.4th at 404 [interrogatories and demand to produce].)

The Court must award sanctions when a party's response to request for admissions is untimely, and the discovering party makes a motion to deem the requests admitted. (CCP, § 2033.280, subd. (c); *Appleton*, supra, 206 Cal.App.3d at 635-636 [sanctions are mandatory].)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was

provided to the moving party after the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses “as essentially unnecessary, in whole or in part.” (Sinaiko, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Defendant requests sanctions in the amount of \$1,260.00 for the motion to compel responses to special interrogatories and \$860.00 for the motion to compel responses to requests for production. The amount requested is slightly high given that no opposition or reply has been filed. The sanctions are adjusted accordingly. Sanctions are awarded as follows: \$1,060.00 for the motion to compel responses to special interrogatories and \$660.00 for the motion to compel responses to requests for production.

RULING:

Defendant’s Motion to Compel Responses to Special Interrogatories is GRANTED. Plaintiff is ordered to serve full, Code-compliant, verified responses, without objections within 20 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$1,000.00 (2.5 hours @ \$400/hour) [3.0 hours requested] plus \$60.00 in filing fees for a total award of \$1,060.00 [Amount Requested \$1,260.00], which sum is to be awarded in favor of Defendant Norma Lynn Finch and against Plaintiff Anthony Chandler payable within 20 days. (CCP, § 2030.290, subd. (c); CRC Rule 3.1348(a).)

Defendant’s Motion to Compel Responses to Requests for Production is GRANTED. Plaintiff is ordered to serve full, Code-compliant, verified responses, without objections within 20 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$600.00 (1.5 hours @ \$400/hour) [2.0 hours requested] plus \$60.00 in filing fees for a total award of \$660.00 [Amount Requested \$860.00], which sum is to be awarded in favor of Defendant Norma Lynn Finch and against Plaintiff Anthony Chandler payable within 20 days. (CCP, § 2031.300, subd. (c); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by 3:00 PM today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.